1999 P Cr. L J 1882

[Lahore]

Before Muhammad Nawaz Abbasi, J

MUHAMMAD ARIF PATWARI --- Petitioner

Versus

THE STATE---Respondent

Criminal Miscellaneous No. 903/B of 1998, decided on 11th November, 1998.

Criminal Procedure Code (V of 1898)---

----S. 497(2)---Prevention of Corruption Act (II of 1947), S.5(2)---Penal Code (XLV of 1860), S.161/471/467/468/420---Bail, grant of---Accused was alleged to have entered the mutation through less deposit of mutation fee, whereas actually complainant was responsible for the deposit of the said fee and less deposit, if any, was made by the complainant who being in possession of the deposit slip brought the same to the accused---Alleged entry in the challan after deposit whether was made by the accused or by the complainant, thus, needed determination through evidence by Trial Court---Case against accused, therefore, needed further inquiry in terms of S.497(2),Cr.P.C.---Accused was admitted to bail accordingly.

Sh. Muhammad Suleman for Petitioner.

Qazi Ahmad Naeem Qureshi for the State.

ORDER

The petitioner being under arrest in a case under-section 161/471/467/ 420/468, P.P.C. read with section 5(2) of the Prevention of Corruption Act, 1947 registered against him through F.I.R. No.13, dated 30-4-1998 at Police Station A.C.E., Rawalpindi upon, refusal of bail by the learned Special Judge (Anti-Corruption), Rawalpindi, has moved this application before this Court for grant of bail.

2. The co-accused of the petitioner while posted as Patwari Halqa allegedly demanded Rs.20;000 as illegal gratification from Muhammad Aslam complainant, vendee of land measuring 9 Kanals, 13 Marlas, for attestation of the mutation and upon taking the matter to the Tehsildar concerned, he also demanded the payment of said amount with threats of cancellation of the mutation. The complainant allegedly paid Rs.10,000 to the accused with the understanding that the remaining amount would be paid later but still mutation was not sanctioned. During the course of investigation, it transpired that some pages of register of mutations and Pert Sirkar were missing which were allegedly removed by the petitioner in addition to the embezzlement of an amount of Rs.5,n00 received by him from the vendee as mutation fee.

3. The precise allegation against the petitioner is that he received an amount of Rs.5,750 as mutation fee, but deposited only an amount of Rs:750 in the treasury and later added figure "5"

on the deposit slip. The learned counsel contends that the mutation fee having been deposited by the vendee, the deposit slip was in his possession and that he being the beneficiary, the allegations against the petitioner are unfounded.

4. Learned counsel appearing on behalf of the State opposed the grant of bail on the ground that the alleged fake entry was not possible without the connivance of the petitioner.

5. I have heard the learned counsel for the petitioner as well as the State and also perused the record. The sole allegation against the petitioner is that he entered the mutation in question through less deposit of imitation fee, whereas actually the complainant was responsible for the deposit of the said fee and less deposit, if any, was made by the complainant, who being in possession of the deposit slip brought it to the petitioner and, thus, the alleged entry in the challan after deposit whether was made by the petitioner or it was an act of complainant needs determination and unless it is proved that an amount of Rs.5,750 was given to the petitioner by the complainant for deposit and he made less deposit, through evidence, the correct position cannot be ascertained. There being reasonable grounds for further inquiry into the guilt of the petitioner in terms of subsection (2) of section 497, Cr.P.C., he is entitled to the concession of bail.

6. Consequently, I allowing this application grant bail to the petitioner subject to his furnishing bail bonds in the sum of Rs.50,000 with one surety in the like amount to the satisfaction of the trial Court.

N.H.Q./M-960/1

Bail allowed